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Submitter Information

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General Comment

Hello OSTP, NITRD NCO, et. al,

I'm a professional video game developer of 6 years who has a vested interest in AI as a future potential aide in development. My job necessitates I work with a lot of artists, programmers, and designers with various opinions on the subject. The biggest controversies over AI has been the lack of transparency on dataset contents, training models for profit on data without express permission or license to do so. This should be made more clearly illegal, that AI works are not implicitly original works. Continuing to keep this question in legal limbo without enforcement hurts the copyright interests of domestic small businesses and individuals by allowing massive conglomerates to circumvent copyright law by feigning ignorance about where their training data comes from.

I think the best way to tackle this issue is to tackle the causing issue - the lack of privacy protections online. A common proposal is stricter tracking laws in the US similar to the GDPR in the EU which would empower the freedom to privacy and keep Americans' copyright rights intact. Part of my job is working with Personally Identifiable Information, and as I have customers across the globe I comply with the GDPR. The burdens on services are negligible compared to the benefits the average citizen gains. I would go further and say that we should codify DoNotTrack options as a mandatory compliance rather than a suggestion to the website.

Another concerning issue on the infrastructure side is the power consumption of training models. We need to change how we price electricity to a more common-sense approach. If a facility requires a ton of power, they should be eating the cost of producing that power, not having it distributed to all grid uses. This could be handled by utility companies directly if given the proper authority.